

District: Jhenidah.

**In the Supreme Court of Bangladesh
High Court Division
(Criminal Appellate Jurisdiction)**

**Present:
Mr. Justice Syed Md. Ziaul Karim
And
Mr. Justice K.M. Emrul Kayesh**

Criminal Appeal No. 2511 of 2001.

Mozammel Hossain and others
..... Convict-appellants.
Versus
The State
..... Respondent.
Ms. Rana Kawsar, with
Mr. Md. Mostofa Kayum, Advocates
..... For the Convict-appellant Nos. 2-9.
Mr. Md. Shahidul Islam with
Mr. Md. Asaduzzaman Khan, Advocates
..... For the Convict-appellant No.1.
Mr. Mohammad Monirul Islam, Deputy-
Attorney-General with
Mr. Robiul Islam, Assistant-Attorney-
General,
Ms. Ayesha Flora, Assistant-Attorney-
General
Mr. Md. Jahir Ahmed, Assistant-Attorney-
General and
Mr. Mohammad Shafayet Zamil, Assistant-
Attorney-General
..... For the State-respondent.

**Heard on: 29.11.2023, 30.11.2023,
03.12.2023, 04.12.2023.**

and

Judgment delivery on: 07.12.2023.

K. M. EMRUL KAYESH, J:

- (1) This criminal appeal is directed against the Judgment and order of conviction and sentence dated 27.06.2001 passed by the learned Additional Sessions Judge, 2nd Court, Jhenidah in Sessions Case No.47 of 2000, arising out of Jhenidah Police Station Case No.26 dated 31.08.1997, corresponding to G.R. Case No.237 of 1997, convicting the convict-appellants namely (1) Mozammel Hossain, son of Mujibur Rahman, (2) Akkas Ali alias Akkel, son of late Wahed Ali, (3) Alam Mondal, son of late Azobur Sardar, (4) Mosarraaf Hossain alias Musha, son of Mujibur Rahman, (5) Tofazzal Hossain, son of Mujibur Rahman, (6) Towakkel Ali alias Tokkel, son of late Wahed Ali, (7) Tayeb Ali

alias Seti, son of late Azibor Sarder, (8) Rokon Uddin, son of Hafez Abdul Gani and (9) Nazim Uddin, son of Mohammad Ali Mollah under sections 302 and 34 of the Penal Code sentencing each of them thereunder to suffer rigorous imprisonment for life each and also to pay a fine of Taka 1,000/-(one thousand) only each.

- (2) The prosecution case, in short, is that on 31.08.1997 at 4.00 PM the F.I.R. named accused Mohammad Ali Molla, Mujibor, Mosarraaf, Mojammel, Tofazzel, Towakkel Ali, Akkas Ali, Jhantoo, Alam Mondal, Tayab Ali, Nasiruddin, Nazimuddin, Enamul, Yakub Ali, Abul Hossain, Mukul Hossain, Rokonuddin, Motaleb Hossain, Habibur, Akram, Labloo along with 20/30 Co-accused being armed with Ramdao, Lathi, Sharki, Chinese axe and Fire arms formed an unlawful assembly and attacked Abdur Rashid at Halidhani Bazar in

order to kill him. That the accused Mohammad Ali ordered the accused persons to kill Abdur Rashid and by getting the said order the accused Nasir and Nazim started to hurl brickbats staying on the roof of their house. While the accused persons proceeded to the shop the shopkeepers, Maherul and Fatey Biswash having entered into the shop and shutdown the shutter, at that time Abdur Rashid took shelter in the said shop to save himself. Then the accused persons tried to break the shutter, and that the hotel boy Masudur Rahman Dudu (hereinafter referred to his nickname as Dudu) protested them for which the accused Mujibur Rahman Sarder ordered other accused persons to kill him, and that with fear of life the deceased Dudu tried to flee away and he was caught hold at the eastern side of Halidhani High School, and that the accused Mozammel dealt a

Ramdao blow on the right side of his chest while Dudu fell on the ground at that time the accused Nasir, Nasim and Yeakub dealt a Lathi blow on different parts of his body and caused serious cut injury. While the witness Saleha Khatun and others attempt to come forwards to the place of occurrence, that the accused Akul, Towakkel, Rokon and Enamul made 4(four) blank fires, that the witness Shaleha Khatun could not reach to the place of occurrence and that she found her husband's dead body lying on the place of occurrence; that on the basis of the aforesaid allegations the informant lodged the First Information Report with Jhenidah Police Station. Whereupon the Jhenidah Sadar Police Station Case No. 26 dated 31.08.1997 under sections 147/148/149/302 and 34 of the Penal Code was started.

- (3) After lodgment of the First Information Report, the police investigated the case and submitted charge sheet being No.33 dated 05.03.1998 before the learned Court against the appellants under sections 147/148/149/302 and 34 of the Penal Code and final report was submitted against the accused Nazim and 15 others.
- (4) Thereafter, the informant filed a Naraji Petition whereupon a judicial inquiry was held and the appellant Najim Uddin son of Mohammad Ali Mollah was inserted as accused in the case.
- (5) After submitting charge sheet of the case the learned Magistrate, transmitted the case record to the learned Sessions Judge, Jhenidah, wherein it was registered in Sessions Case being No.47 of 2000 and then transferred the same to the learned Additional Sessions Judge, 2nd Court,

Jhenidah for trial and disposal, who after receiving the case record framed charge dated 05.03.1998 against the present convict-appellants and others under sections 147/148/149/302 and 34 of the Penal Code. The charge was then read over and explained it to the convict-appellants to which they pleaded not guilty and claimed to be tried in accordance with law.

- (6) To bring home charge the prosecution examined as many as 17 witnesses out of 20 charge sheet named witnesses.
- (7) After closure of the evidence of prosecution witnesses the convict-appellants were examined under section 342 of the Code of Criminal Procedure (hereinafter referred to Code). When the learned Judge drew their attention to incriminating materials occurring against them one by one to which they further expressed their innocence and

claimed to be justice and they led no evidence.

- (8) The defence case as it transpires from the trend of cross-examination of the prosecution is that of innocence and false implication. It further divulged in defence case that one ex-chairman Abdur Rashid is the orchestrator of this case. The informant is the wife of the deceased at the instance of the said Abdur Rashid filed this case against the convict-appellants. It further appears to the defence case deceased Dudu was not killed by the accused as alleged by the prosecution. Rather he might have been killed other way round.

- (9) After plenary trial the learned Additional Sessions Judge, 2nd Court, Jhenidah convicted the appellants culling out points in the following:

- (a) The prosecution successfully proved the charge against the convict-appellants by way of corroborative evidence;
 - (b) The evidence led against the convict-appellants were consistent, uniform, trustworthy and corroborative in nature;
 - (c) The prosecution proved the charge against the convict-appellants beyond all reasonable doubt.
- (10) Feeling aggrieved by and dissatisfied with the impugned judgment and order of conviction and sentence, herein the convict-appellants have preferred the instant appeal.
- (11) Ms. Rana Kawser, with Mr. Md. Mostofa Kaiyum, appearing on behalf of convict-appellant No. 1, Mozammel and Mr. Md. Shahidul Islam with Mr. Md. Asaduzzaman Khan, the learned Advocates, appearing on behalf of the convict-appellant Nos. 2-9 have

sought for impeachment of the impugned judgment and order of conviction and sentence by culling out the following arguments:

Firstly: The informant and all of the witnesses are close relative with each other and they are not at all eye witnesses of the incident of murder, so the learned court arrived at a decision without considering the evidences on record in its true perspective.

Secondly:-The evidences on record which are not consistent and trustworthy against the convict-appellants, rather it was full of contradictions with the evidence of each other.

Thirdly:- The convict-appellants were not examined under section 342 of the Code properly and thereby the convict-appellants have been prejudiced by faulty examination

of the convict-appellants under section 342 of the Code.

Fourthly:- All the witnesses are tutored witnesses. They are not at all eye witnesses of this case.

Fifthly:- The deceased Masudur Rahman Dudu was killed by other way round but the ex-chairman Abdur Rashid was his enmity with the convict-appellants have filed a false case using the informant.

(12) The learned Advocate for the convict-appellants have sought for impeachment of impugned judgment relying upon in the following authorities:

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| (I) | Babor Ali Mollah | . . . Appellant |
| | -Vs- | |
| | State | . . . respondent, |
| | | reported in 44DLR (AD)(1992) at page-10. |
| (II) | State of Punjab | . . . Appellant |
| | -Vs- | |
| | Surja Ram | |

- ... respondent,
reported in Manu/SC/0482/1995,
1995 Cr.L.J 4161.
- (III) Bathu Mathubbor and others
... Appellants
-Vs-
State. respondent
reported in 11BLC(HC) 538
- (IV) Farid Miah
... Appellant
-Vs-
State
... respondent.
Reported in 13BLC(HCD) at page- 903.
- (V) Abul Bahar
... Appellant
-Vs-
State
... respondent
reported in (1985) BLD(HCD) 84. 1959
PLD(Dhaka) at page-931.
- (13) Mr. Mohammad Monirul Islam, Deputy-
Attorney-General appearing on behalf of the
state submitted drawing our attention to the
First Information Report, impugned
judgment, Charge sheet, evidence on record
and the facts and circumstances of this case
seriously opposes the appeal. He further
submits that the prosecution has been able
to prove the charge against the convict-
appellants beyond reasonable doubt. He next

submits that the learned court below after a careful consideration of the evidence on record and facts and circumstances and evidences of eye witnesses of this case the learned court below convicted and sentenced the appellants properly which does not call for interference by this court in appeal.

(14) The learned Deputy Attorney General has submitted relying on the following authorities,

(I) Afel Khan and 9 others
 . . . petitioners

-VS-

The state and another

...opposite parties
reported in 29DLR(1997) at page-
3.

(II) Khorshed (Md) and another
... appellants

-VS-

State

... .. respondent
reported in 73DLR (AD) 83

At the fag-end of his submission tenaciously
prayed for dismissal of the appeal.

(15) Let us now consider the evidences on record as adduced by the prosecution to prove the charge levelled as under:

(16) P.W.1 Shaleha Khatoon deposed that on 31.08.1997 at 4.00 PM the F.I.R. named accused and others 20/30 Co-accused being armed with Ramdao, Lathi, Sharki, Chinese axe and fire arms formed an unlawful assembly and attacked Abdur Rashid at Halidhani Bazar in order to kill him. That the accused Mohammad Ali gave an order to the accused persons to kill Abdur Rashid after getting the order the accused Nasir and Nazim started to hurl brickbats staying on the roof of their house. While the accused persons started to proceed to the shop of Maherul and that Fateh Biswas entered into the shop and shutdown the shutter. Thereafter, Abdur Rashid took shelter in the shop to escape himself from the hands of the

accused persons at that time the accused persons tried to break the shutter, and that a mere employee of a hotel Dudu protested against their nefarious activities for which the accused Mujibur Rahman Sarder ordered other accused persons to kill him. In order to fear of his life the deceased Dudu started to flee away and was finally caught hold at the eastern side of Halidhani High School, while the accused Mozammel dealt a Ramdao blow on the right side of his chest thereby the deceased Dudu fell on the ground then the convict-appellants Nasir, Nasim and Yeakub dealt a lathi blow on different parts of his body and caused serious cut injury. While on being informed the informant Saleha Khatun and others tried to go to the place of occurrence, the accused Akul, Towakkel, Rokon and Enamul made blank fires. Thereafter, the informant could not reach to

the place of occurrence and after the occurrence she found her husband's dead body lying on the place of occurrence. In the basis of the aforesaid incident, she lodged the First Information Report with Jhenidah (Sadar) Police Station. She proved the First Information Report and her signature thereon marked as ext.1 and ext. 1(a) respectively.

- (17) In cross-examination stated that she put her signature at the instruction of Abdur Rashid and Police on the First Information Report. She further stated in her cross-examination that she was distraught losing her husband at the time of lodging FIR. She further stated in her cross-examination that the contents of the First Information Report was not read over to her, and she lodged the First Information Report at 10.00 PM on 31.08.1997. After lodging FIR she returned to

her house by a scooter with Ex-chairman Abdur Rashid. She denied a suggestion that her husband was a member of terrorist group of underground party that the convict-appellants did not kill her husband, that she has falsely implicated the convict-appellants at the instigation of Abdur Rashid. She further denied she did not see the incident standing at a distance of 15/20 cubits away from the place of occurrence.

- (18) P.W.2 Ex-chairman Abdur Rashid testified that on 31.08.1997 at 4.00 PM the incident took place. On the date of occurrence, he was reading a newspaper sitting outside of a shop belonging to Maherul, while 20/25 persons were running towards Halidhani Bazar, then he stopped reading of newspaper at that time Nasir and Nazim son of Mohammad Ali Molla started throwing brickbats from the roof of their house. Then and there he entered into

the shop of Maherul and shut down the shutter of the shop. After 3/4 minutes he came out from the shop apprehending presence of police there and he saw the deceased Dudu was murdered. He further came to know the deceased Dudu was killed by the order of Mujibur Rahman by receiving the order from the accused Mujibur Rahman, Mozammel, dealt a blow by using a Ramdao on the left side of his chest and others accused Nasir, Nazim and Akul dealt a blow by using Lathi on the body of the deceased and that the deceased Dudu instantly died on the spot, which was told by the witnesses Rajjak, Mohammad Ali and Barek to him. He further stated that Rajjak, Mohammad Ali and Barek were the eye witnesses of the incident of murder. At the time of killing of the deceased Dudu, the accused Akul, Towakkel, Rokon and Enamul opened 4(four)

rounds blank fires to disperse the rampaging mob in the place of occurrence. Thereafter, the wife of the deceased Dudu lodged the First Information Report with Jhenidah (Sadar) Police Station.

- (19) In cross-examination he admitted that accused Mohammad Ali separately filed a Criminal and Civil cases against him. He stated in his cross-examination that witness Maherul was a tenant under him. He further stated that accused Mohammad Ali was the owner of a market situated in front of Maherul's shop. He admitted in his cross-examination that he is the brother by village courtesy of the informant, deceased Dudu was a very poor man and he used to earn livelihood by rendering service in a hotel. He admitted in his cross-examination that the place of occurrence lies by the side of Halidhani High School. He admitted in his

cross-examination that he did not see the incident and that he was not eye witness of the incident. He denied a suggestion that deceased Dudu was killed by the terrorist group of underground party as the convict-appellants had enmity with him; he filed the case by using informant against the convict-appellants.

(20) P.W.3 Maherul Islam deposed that he has a cloth shop at Halidhani Bazar and PW-2 is the owner of his shop. He is the tenant under PW-2 Abdur Rashid. He further stated that on 31.08.1997 at 4.00 PM witness Abdur Rashid was reading a newspaper sitting in front of his shop, while the accused persons started throwing brickbats aiming at Abdur Rashid. When he entered into a room and shut down the shutter of his shop. Thereafter, they came out from his shop after apprehending presence of the police.

(21) In cross-examination he denied a suggestion that he has deposed in court at the instance of Abdur Rashid, he has deposed, cooking up a story of killing the deceased Dudu against the convict-appellants. He denied a suggestion that he was giving false evidence against the convict-appellants.

(22) P.W.4 Fatey Ali stated that on 31.08.1997 at 4.00 PM Ex-Chairman Abdur Rashid was reading a newspaper sitting in front of Maherul's shop at Halidhani Bazar, while the accused Nazim son of Mohammal Ali started throwing brickbats aiming at Abdur Rashid. Thereafter, Abdur Rashid entered into the shop of Maherul and shut down the shutter of his shop. Thereafter, he came out from the shop sensing presence of police in Halidhani Bazar. When he came to know deceased Dudu was killed by the convict-appellants.

(23) In cross-examination he denied that he was deposing in court at the instance of Abdur Rashid, that he was giving evidence falsely against the convict-appellants.

(24) P.W.5 Saidur Rahman Saiyed stated in his examination in chief that he did not see who killed the deceased Dudu because he was on duty in examination Hall of his School. He is a teacher by profession of Halidhani High School. Thereafter, he was declared hostile by the prosecution and was cross-examined by the prosecution. He denied a suggestion that he was giving false evidence to save the convict appellants in court.

(25) P.W.6 Abdul Hannan stated in his deposition that he was an owner of photo-studio at Halidhani Bazar. He further stated that he did not see the incident of killing even he did not hear who killed the deceased Dudu. Thereafter, the prosecution declared him

hostile and was cross-examination by the prosecution.

In cross-examination by the prosecution he denied that he had seen the killing of the deceased Dudu.

(26) PW-7 Anisur Rahman, was tendered by the prosecution. In cross-examination stated that on the date of occurrence the examination of school was going on and the deceased was killed in a plot belonged to Nobish Uddin situated by the side of a Madrasha. He further stated that the armed cadre killed the deceased Dudu and fled away from the place of occurrence wearing mask in their face. He clearly stated in his cross examination that the accused persons stood on dock were not involved with the killing of the deceased Dudu.

(27) P.W.8 Nabish Uddin he was tendered by the prosecution. In cross-examination stated that

Masudur Rahman Dudu was killed in his plot and he was not staying at his house on the date of occurrence and his wife told him that the deceased Dudu was killed by some miscreant wearing mask.

- (28) P.W.9 Mohammad Ali, stated that the informant Shaleha Khatun is known to him. He further stated that on 31.08.1997 at 4.00 PM, he was going to Halidhani Bazar from his house. While he reached near at the house of Kowser heard hue and cry and that he saw the deceased Dudu was running towards his house from Halidhani Bazar and 20/25 persons were chasing him and FIR named accused were on wielding fire arms. When the deceased Dudu reached in the eastern side of Halidhani School the accused Mozammel dealt a blow by using a sharp cutting dao on the chest of Dudu and accused Alam dealt blow by using a iron rod

on his right leg and accused Nasir, Nazim and Tofazzal dealt a blow indiscriminately on the body of the deceased. At that time accused Enamul, Rokon, Shakul and Toyakkel made four blank fires at wind. Thereafter he did not proceed towards the place of occurrence at that time the accused persons fled away from the place of occurrence.

(29) He admitted in his cross examination he was accused of a case filed by accused Mohammad Ali of the instant case and he is the member of Shayanto fish enclosure (মাছের বাউর). He admitted in his cross-examination that the house situated in the eastern side of Halidhani High School of Alfaz, Shafi, Nabis Chowdhury, Joynal, Showkat and Maliha. Who were not examined in this case.

(30) In cross examination he stated having had committed murder of Dudu the teacher and

students of Halidhani High School did not come forward in the place of occurrence. He admitted in his cross examination that he went to the Police Station with the dead body of Dudu. He denied a suggestion that he did not go to the place of occurrence even the accused persons did not kill the deceased. He denied a suggestion that he was giving evidence falsely in favour of the prosecution.

(31) P.W.10 Momtaz Pervin Sheuly stated that on 31.08.1997 at 4.00 PM she was staying in the house of Shirina after hearing hue and cry, she came out from the house of Shirina and proceeded 15/20 cubits towards the place of occurrence and saw that the convict-appellants were chasing the deceased Dudu, while she reached near to the eastern side of Halidhani School. The accused Mozammel dealt a blow on the left chest of deceased Dudu by using sharp cutting Ramdao and

accused Alam dealt a blow by using iron rod on left knee thereby the victim fell on the ground. Thereafter, the accused Nasir, Nazim, Akul dealt a blow by using Lathi indiscriminately on the body of the deceased Dudu and accused Akul, Rokon, Enamul, Toyakkel made four bank fires at wind. When she saw Dudu had died and she identified the accused on dock. He admitted in his cross examination that witness Abdur Rashid is her father. She stated in her cross examination that she and witnesses Shirina, informant Shaleha, Kowser Biswas and other witnesses saw the incident standing at a distance of 20/30 cubits away from the place of occurrence.

- (32) She denied a suggestion that her father and accused persons were sworn enemies and thereby she has given false evidence against the convict-appellants.

(33) P.W.11 Shirina Pervin deposed that on 31.08.1997 at 4.00 PM she was staying at her house. After hearing hue and cry coming out in the field of Halidhani High School. While she came out along with witness Sheuly at that time the deceased Dudu was being chased by the convict-appellants. When the deceased Dudu reached in the eastern side of Halidhani High School, at that time the accused Mozammel dealt a blow by using a Ramdao on the left chest and thereby caused bleeding cut injuries, the accused Alam dealt a blow by using an iron rod on the left knee thereby he fell on the ground. The accused Nasir, Nazim Akul dealt a blow indiscriminately on the body of the deceased Dudu. At that time of killing the deceased the accused Akul, Rokon, Toyakkel and Enamul made four blank fires only to disperse the public. She reached to the place of

occurrence having left the accused persons from the place of occurrence.

(34) She denied a suggestion that she did not see the accused persons of killing the deceased Dudu. She also denied a suggestion that she did not disclose the name of the accused to the investigating officer, she was deposing falsely against the accused persons as her maternal uncle Ex-chairman Abdur Rashid and the accused persons are inimical relationship.

(35) PW-12 Abdur Rajjak deposed that on 31.08.1997 at 4.00 PM he was sitting in his tea stall and photo-studio, while the accused Mohammad Mollah, Nasir, Hafiz, Mojibur Mozammel, Mosarrof, Tofa Enamul, Toyakkel, Jontu, Akul, Mukul, Abul Hossain, Abul, Ekram, Rokan Labloo, Habibur, Motaleb, Rafiqul along with 30/35 persons being armed with Lathi, Iron Rod, Dao and

Fire arms started to throw brickbats aiming at ex-chairman Abdur Rashid who was sitting in front of his shop on a chair from the roof of a building of Mohammad Molla by Nazim, Rafique. Thereafter, ex-chairman Abdur Rashid hurriedly entered into the shop of Maherul and shut down the shutter of his shop.

- (36) While, Dudu was coming from the eastern side carrying some vegetables in his hands and loudly said “যে রশিদকে মেরে ফেলল” Thereafter the accused persons started to chase him. When he reached in the eastern side of Halidhani High School on a Kacha road, where the accused Mozammel dealt a blow by using Ramdao on the left side of his chest and accused Alam dealt a blow by using iron rod and accused Akkas dealt a blow under the knee of the deceased. At that time villagers came to the place of occurrence. The

accused Rokan, Toyakkel, Abul and Enamul made four blank fires in the place of occurrence from their fire arms and fled away in the south side of the place of occurrence. Thereafter, they saw the dead body of Dudu lying in the place of occurrence.

- (37) In cross-examination he stated that ex-chairman of Abdur Rashid is his step brother. He further stated that there is a case and counter case with accused Mohammed Ali and Abdur Rashid. He denied a suggestion that he did not tell to the police mentioning the name of the accused persons, and that the accused persons did not hit by using sharp cutting weapon and iron rod, and that he deposed in court against the accused persons as he is the man of Abdur Rashid. He further denied that he was giving false evidence in court.

(38) P.W.13, Barek Miah stated that on 31.08.1997 at 4.00 PM he was sitting in side of his Laundry shop, at that time the accused Nasir and Nazim were throwing brickbats aiming at ex-chairman Abdur Rashid, when he was sitting in a road in front of a shop of Maherul. He further stated that the accused Mohammad Mollah gave an order to accused persons to liquidation of ex-chairman Abdur Rashid. Thereafter, ex-chairman Abdur Rashid entered into a shop of Maherul and then shut down the shutter of the shop. Then the convict-appellants started to chase Dudu from the Halidhani Bazar, while he reached in the eastern side of Halidhani High School in a Kacha road (Meadowpath) accused Mozammel dealt a blow by using a Ramdao on the left side of his chest and accused Alam dealt a blow by using an iron rod on the leg of the deceased Dudu and accused

persons dealt a blow by using Lathi, thereafter Dudu instantaneously died on the spot. One information police came to the Halidhani market thereafter, ex-chairman Abdur Rashid apprehending presence of the police, came out from the shop of Maherul. The police after receiving information about killing of Dudu came to the place of occurrence bloodstained earth, shirt, Ganji, Longi seized and prepared a seizure list. Thereafter, the investigating officer took his signature on the seizure list. He proved the seizure list and his signature thereon which has been marked as ext. 2 and his signature thereon ext. 2(a).

(39) He identified the convict-appellants on dock.

He admitted that he was examined on 10.10.1997 by the investigating officer in connection with this case. He denied a suggestion that the convict-appellants did

not attack the deceased by using sharp cutting weapons and thereby he was not fallen to death on the spot. He further stated in his cross examination that his shop situated at Halidhani Bazar and the place of occurrence was intervened by some houses and shops. He further admitted in his cross-examination that he was in custody 2/3 days of a case filed by Joynal. He admitted that there is a dispute with the accused Mohammad Mollah over land. He denied a suggestion that he was deposing falsely in court keeping the request of ex-chairman Abdur Rashid.

(40) P.W.14 Md. Abdul Mannan stated in his examination in chief that on 31.08.1997 at 4.00 PM the deceased Dudu was killed by the accused persons in the eastern side of Halidhani High School on a Kacha road. Thereafter, the police came to the place of

occurrence and seized bloodstained earth and wearing his apparels and prepared a seizure list and collected his signature thereon. He proved the seizure list and his signature therein which has been marked as ext. 2 and ext. 2(b) respectively.

(41) In cross examination stated that Abdur Rashid chairman is his real brother. He further admitted in his cross examination there is a case between his brother and accused Mohammad Molla. He denied a suggestion that the ex-chairman Abdur Rashid filed a false case against the accused persons, by using the informant of this case.

(42)PW-15, Nurul Islam stated that on 31.08.1997 at 4.00 PM he was working at his house. After hearing hue and cry he rushed to the field of Halidhani High School. Thereafter, he saw 22 accused persons namely Mojammel, Tofazzel, Mojibur Sadar,

Alam, Toyab Ali, Enamul, Jantu, Towakkel, Nasir, Nazim, Mohammad Molla, Akul, Mukul, Abu Hossain, Labu, Yakub, Akram, Abul Hossain, Rokon. He further stated that the accused Mozammel dealt a blow by using sharp cutting Ramdao on the left side of his (Dudu) chest, accused Alam dealt a blow by using of iron rod on the body of the deceased and other accused namely Nasir and Nazim also beat him by using iron rod. At the time of commission of offence of murder of Dudu, accused Rokan, Enamul Toyakkel, Akul made blank fires in air to create panic in the mind of the people appeared in the place of occurrence. Thereafter, the accused persons fled away safely in the place of occurrence. He stated in his cross examination that he went to the place of occurrence and found the witnesses Mohammad Ali, Shirina and Sheuly.

- (43) He denied a suggestion that he did not disclose the name of accused Mosarraaf, Tofazzel, Mojibur Sarder, Toyab Ali, Nasir, Nazim, Mohammad Ali, Akul, Abu, Mukul, Akub and Abul Hossain, to the investigating officer.
- (44) He further denied a suggestion that he did not specifically mention, who dealt a blow by using a Ramdao on the body of the deceased Dudu.
- (45) He also denied a suggestion that he did not see accused in the place of occurrence regarding killing of the deceased Dudu. He further admitted in his cross examination that his house was intervened by 5/6 houses from the place of occurrence. He denied a suggestion that nothing was happened in the place of occurrence.
- (46) PW-16 Doctor Md. Akbor Hossain stated that he was working as Medical Officer in

Jhenidah Sadar Hospital on 01.09.1997 at 11.00 AM, he conducted post mortem examination on the body of deceased Dudu Mia at the presentation of Constable Abdul Mannan and he found following injuries on the body of the deceased.

1. One oblique penetrating wound on the anterior aspect of left side of chest 01" below the left clavicle measuring about 04"X02" chest cavity (cutting of skin, fat, muscles, 2nd, 3rd, 4th costal cartridge, plasma lunge)
2. Multiple injuries of different size and shape on the ante surface of the lower side of both thigh and knee.

In our opinion death was due to hemorrhage & shock as a result of above multiple injuries which was antemortem and homicidal in nature.

(47) In cross examination he stated that on 01.09.1997 at 11.00AM conducted the post

mortem examination on the body of the deceased Dudu. He further stated in his cross examination that one clerk Nowshed received the dead body of the victim Dudu at 2.00 PM on 01.09.1997. He further stated that penetrating injuries may have caused by the pointed weapons. He further stated that the injuries found on the body of the deceased might have caused by the blow of Ballam, Dagger, Shorki or knife. He denied a suggestion that he submitted post mortem examination report in terms of the inquest report.

- (48) PW-17 Md. Nazrul Islam stated that on 31.08.1997, he was attached with Jhenidah Police Station as SI on the date of occurrence at 5.00 PM the Dafader Abul Hossain of Halidhani Union came to the Police Station and informed him that two groups one belongs to Abdur Rashid and another group

belongs to Mohammad Molla were quarreling (মারামারি) after receiving the information about the marmari he made a GD entry being No. 1034 dated 31.08.1997 went to Halidhani Bazar. Thereafter, he came to know that dead body of Dudu Miah was lying in the eastern side of Halidhani High School on a Kacha road. On going to the place of occurrence prepared an inquest report over the cadaver of the deceased Dudu. He arranged to hold post mortem examination sent the dead to Jhenidah Sadar Hospital and he prepared an inquest report and his signature thereon. He proved the inquest report and his signature therein which has been marked as ext. 4 and ext. 4(a) respectively. Then the officer-in-charge of the said police station assigned him to hold investigation over the case. After receiving the responsibility to hold investigation of the case, he visited to the

place of occurrence, prepared a sketch map and index. He proved the sketch map, index and his signature therein which has been marked as ext. 5 and ext. 5(a) respectively and his signature thereon marked as ext. 6 and ext. 6(a) respectively. Thereafter, he seized some Alamot by preparing a seizure list which has been marked as material ext. II and his signature thereon marked as ext. II(a) and he examined the witnesses of the case and recorded their statement under section 161 of the Code. He arrested the accused Akkas Ali, Toyakkel Ali, Nazim Uddin, Abdul Hossain and produced them before the court and prayed for remand. On receiving the post mortem examination report from Sadar Hospital Jhenidah, he submitted charge sheet against the accused Mozammel, Mosarraff @ Samor, Tofazzol, Toyakkel Ali, Akkas @ Akter, Alam Mondal Ali and Rokan

being charge sheet No. 33 dated 05.03.1998 under sections 147/148/149/302 and 34 of the Penal Code against the convict-appellants. He further stated that the investigating officer of the concerned police station filed a case after filling up the FIR form as he would know the signature of officer-in-charge. He proved his (Officer-in-Charge) signature in the FIR which has been marked as ext. 7 and his (Officer-in-Charge) signature ext. 7(a).

- (49) He identified the accused on dock. He admitted in his cross examination that anybody can reach from the place of occurrence to the concerned police station within 20/25 minutes. He further stated in his cross examination that the name of the writer has not been mentioned in the FIR. He denied a suggestion that the signature of the informant and the contents of the FIR are not

written by the same person. He stated that the witnesses would not reach to the place of occurrence due to fear because some accused persons made blank fire at the time of killing deceased Dudu. He further stated in his cross examination that he examined the witnesses under section 161 of the Code 15 days after the date of occurrence.

(50) He further stated that he did not collect any alamot as to making of blank fires in the place of occurrence. He stated in his cross examination that he came to know during investigation the ex-chairman Abdur Rashid belongs to terrorist outfit organization named Haque group of purbabangla communist party. He further stated in his cross examination that the deceased Dudu used to accompany with ex-chairman Abdur Rashid. He further stated that the house situated by the side of the place of occurrence which

belongs to Nabi Chowdhury and his wife they saw the incident as the eye witness during the incident of murder Dudu. He further stated that the accused Nadim is a teacher of a Holidhani High School on which he submitted a certificate.

(51) He denied a suggestion that the witnesses did not say to him that the accused persons killed the deceased, Mozammel killed Dudu by the witnesses and the witnesses did not say the accused persons killed the deceased.

(52) He denied a suggestion that Dudu was killed by terrorist of outfit organization of Haque group of Purba Bangla communist party. Thereafter, ex-chairman Abdur Rashid out of enmity of the accused filed the case by using wife of the deceased Dudu. He denied a suggestion that he submitted charge sheet being influenced by ex-chairman Abdur Rashid.

(53) In order to appreciate the submissions of the learned Advocates for both the parties and we have perused evidences and material on record and given our anxious consideration to their submissions.

(54) Let us now weigh and sift the evidences on record as adduced by the prosecution to prove the charge levelled but defence examined none. We have categorized the witnesses for the betterment of understanding of the case.

(55) PW-1 Saleha Khatun is the wife of deceased Dudu, PW-2 Abdur Rashid is the ex-chairman of the concerned union parishad, PW-3 Maherul Islam is a businessman at Halidhani Bazar. PW-4 Fatey Bishwas is an agriculturist, PW-5 Saidur Rahman Sayed is a teacher of Halidhani High School, PW-6 Abdul Hannan is a businessman at Halidhani Bazar, PW-7 Anisur Rahman is a

office Assistant of Halidhani High School, PW-8 Nabis Uddin, is the owner of the place of occurrence land. PW-9 Mohammad Ali is the close relative of witness Abdur Rashid (PW-2), PW-10 Momotaz Parvin Sheuly is the daughter of Abdur Rashid, PW-11 Shirin is the niece of witness Abdur Rashid, PW-12 Abdur Razzaque is a businessman at Halidhani Bazar. PW-13 Barek Miah is a businessman at Halidhani Bazar, PW-14 Abdul Mannan is the seizure list witness and also the real brother of Abdur Rashid, PW-15 is the witness of the neighbouring house, PW-16, Doctor Md. Akbor Hossain, post mortem examination performing doctor, PW-17 S.I. Nazrul Islam investigating officer of the case.

(56) At the outset of our discussion, we have scrutinized the evidence on record. The learned Advocates for the appellants

submitted that there is no eye witnesses and all the witnesses are partisan and interested also. At this juncture, we have perused the evidences on record. PW-1 deposed in court that on 31.08.1997 at 4.00 PM, she was present in the house of Abdur Rashid. At that time, she came to know accused Mohammed Ali Molla, Mozibor, Mozzamel, Mobarak, Tofazzal, Akkel, Toyeb, Toyakkel, Akkas, Rokon, Enamul, Nazim, Emramul, Babul, Moqbul, Mokul, Abul Hossain, Motaleb, Bablu, Habibur, Jontu and Akram being armed with deadly weapon such as Lathi, Sorki, Chinese axe, Ramdao, etc. attacked her husband and killed him. She further stated that accused Mozammel dealt a blow on the chest of the deceased Dudu, accused Akkas and Alam dealt a blow by using iron rod on the leg of her husband and other accused Mozibor, Nasir and Yukub dealt a

blow on the body of the deceased indiscriminately, while the charge-sheet named witnesses Asia Khaton, Nobisuddin, Mir Anowar Hossain, Ashraf Ali, Kazi Lutfor Rahman, Mansur Ali, Joynal Abedin and Alfazuddin were present in the place of occurrence and saw the incident of murder of her husband. But they have been gained over by the accused persons. In the First Information Report the informant mentioned five persons name as eye witnesses of the incident. The eye witnesses were Mohammad Ali, Rafiuddin, Md. Abdur Razzaque, Kawser and Md. Nurul Islam. Out of them Mohammad Ali, Abdur Razzaque and Md. Nurul Islam have been examined in court as witnesses. Mohammad Ali has been examined as PW-9 before the court, who stated that accused Mozammel dealt a blow on the chest of the deceased Dudu by using a

Ramdao. Accused Alam and Akkas dealt a blow on the right leg of the deceased by using iron rod and accused Nasir, Nazim and Tofazzel dealt a blow with a Lathi on the body of the deceased. Abdur Razzaque has been examined as PW-12 stated that FIR named accused attacked ex-chairman Abdur Rashid, at Halidhani Bazar, while the deceased Dudu started shouting saying “রশিদকে মেরে ফেলল” thereafter, all the accused persons started chasing Dudu and finally attacked him in the east side of Halidhani High School on a Kacha road and accused Mozammel dealt a blow on the left chest of the deceased by using a Ramdao and accused Akkas dealt a blow on the leg of the deceased by using an iron rod. At that time villagers were coming in the place of occurrence and accused Rokon, Toyakkel, Abul and Enamul made blank fires and fled

away from the place of occurrence safely. As per deposition of PW-2, witness Abdul Barek is the eye witness of the incident of murder. But informant did not disclose the name of Abdul Barek as eye witness of the incident in the First Information Report as PW-2 was not present in the place of occurrence. So, how can he termed Abdul Barek into as eye witness of this case, because informant did not disclose his name as eye witness in the First Information Report. As per FIR Abdur Razzaque was the eye witness of the incident. PW-12 stated that he was sitting inside of his laundry shop on 31.08.1997 at 4.00 PM. He saw that the accused Mozammel dealt a blow on the left chest of the deceased Dudu and accused Alam dealt a blow on the left leg of the deceased Dudu with iron rod and accused Akkas also beat the deceased. We find from the evidence of PW-12 he was

sitting inside his tea stall and studio. On the other hand, PW-13 Barek Miah is the eye witness as per evidence of PW-2 Abdur Rashid, PW-13 Barek Miah stated in his cross examination that his shop (situated at Halidhani Bazar) was intervened by some houses and shops from the place of occurrence. But he did not state how he saw the incident of murder of Dudu sitting inside of his shop over the houses and shops in the place of occurrence. PW-12 also stated in his deposition that he was also sitting in his tea stall and studio. But, PW-17, SI Md. Nazrul Islam admitted in his cross-examination that witness Barek Mia saw the incident standing away from the place of occurrence. He further stated in his cross-examination that witness Abdur Razzaque heard the incident of murder after the incident but he (Razzaque) did not disclose the name from

whom he heard the incident of murder of Dudu. As per cross-examination of the investigating officer. PW-13 Abdul Barek and PW-12 Md. Abdur Razzaque were not the eye witnesses of this case. Moreover it is very surprising that the informant clearly stated in the FIR accused Mohammad Ali gave an order to other accused to kill Dudu but investigating officer submitted final report in favour of the said accused. Over and above, the informant PW-1, Saleha Khatoon did not mention in her deposition that accused Mohammad Ali gave an order to other accused to kill Ex-chairman Abdur Rashid and Mujibor Sarder gave an order to other accused person to kill her husband Dudu (deceased).

(57)	In the case of Bathu Mathubbor and others	. . . Appellants (supra)
	-Vs- State	 respondent

Reported in 11BLC(HC) 538,

wherein your lordship observed as under:

Evidence Act (1 of 1872)

Sections 3 and 8

“A meticulous analysis and a careful survey of the versions furnished by alleged eye-witnesses manifest that the evidence are tainted and tutored evidences and there is no ring of truth in the version and it is not safe to put reliance on the evidence of those highly interested and partisan witnesses to find the convicted persons guilty of the offence. No conviction and sentence can be carried to the doors of convicts Bathu Mathubbar and others.”

(58) So, the informant deposed in court omitting vital part of the FIR. PW-1 Saleha Khatoon further stated in her cross-examination that she put her signature in the FIR at the instance of Ex-chairman Abdur Rashid and also police, which indicates that FIR was not written at her narration because she was very shocked at the time of lodging FIR. Moreover, admittedly she was not present in Halidhani Bazar wherein allegedly Abdur Rashid had been attacked by the order of accused Mohammad Ali Mollah. In spite of that she included the incident took place at Halidhani Bazar which manifestly clear that the FIR was not written at her own version.

(59) She further stated in her cross-examination that she was distraught at the time of lodging FIR. PW-17 investigating officer stated in cross-examination that eye witness Nurul Islam did not say to him that he saw the eye

witness Sheuli, Kawser and Mohammad and Shirina in the place of occurrence. He further stated that the eye witness Nurul Islam did not disclose the name of the accused Mosarraff. Toffazzal, Toyeb, Mohd. Ali, Akul, Mukul and accused Alam Gazi beat Dudu and Nazim and Nasir dealt a blow by using iron rod, he (PW-15) did not say to him. So, the eye witnesses PW-9, PW-10, PW-11, PW-12, PW-13 and PW-15 were not eye witnesses of this case in view of the cross-examination of the investigating officer as PW-17.

(60) We further find that place of occurrence is not in the Halidhani Bazar. PW-12 stated that he saw the incident sitting inside of his tea stall and photo-studio. He did not mention that he saw the incident coming out from his tea stall and photo-studio. So, PW-12 and PW-13 are not eye witnesses of the incident. Another two eye witnesses of this

case, PW-10 Momotaz Parvin, PW-11 Sheuli. PW-1 Saleha Khatoon did not disclose their name in the First Information Report as eye witnesses of this case. PW-1 stated in her cross-examination that FIR named eye witnesses have been gained over by the accused persons for which she could not produce them in court as witnesses. Thereafter, she has disclosed the name of Momtaz Parvin Sheuli and Shirina as eye witnesses in her deposition. PW-10 Mamotaz Parvin Sheuli stated that she went to the place of occurrence from the house of Shirina. PW-1 stated Momotaz Pervin Sheuli went to the place of occurrence from the house of PW-2 Abdur Rashid and Shirina (PW-11) went to the place of occurrence from her house along with PW-10. It further appears from the evidence of PW-10 that Shirina's house was intervened by two

houses from the place of occurrence and the owner of the two houses are Joynal and Ashraful, they are not examined of this case as witness. PW-9 Mohammad Ali stated that three houses were situated by the eastern side of Halidhani High School and those house belongs to Alfaz, Nabi Chowdhury and Shofi, out of them Nabi Chowdhury has been examined as eye witnesses of this case as PW-8, who stated that deceased Dudu had been killed in his plot and he was not at his house on the date of occurrence. His wife told him that all the accused were wearing mask at the time of commission of murder of deceased Dudu. PW-9 Mohammad Ali stated himself as eye witness of the incident of murder. He stated that he saw the accused Mozammel dealt a blow with a Ramdao on the chest of the deceased and accused Alam dealt a blow by using iron rod on the right leg

of the deceased and other accused Nasir, Nazim and Tofazzal dealt a blow by using Lathi on the body of the deceased. He stated in his cross examination that he was accused in a case being G.R. case No. 98 of 1980 filed by the accused Mohammad Ali Mollah. He further stated that PW-2 Abdur Rashid is his relative. So, he is very much interested witness and he is not at all disinterested witness of this case. PW-3 and PW-4 did not implicate the accused persons specifically with killing of the deceased. PW-5 stated he did not see the incident of murder of Dudu. PW-6 did not support the prosecution case. PW-7 Anisur Rahman, office assistant of Halidhani High School. In cross examination he stated that the deceased Dudu was killed in the field of Madrasha nearby the house of the Nabis Uddin Chowdhury, who has been examined as PW-8, did not support the

prosecution case saying that he was not available in his house at the time of incident. His wife Asia Khatoon was not examined in court though, she was charge sheet named witness. The prosecution withheld her evidence without offering plausible explanation which indicates that had they (Charge sheet named witnesses) been examined in court and FIR named witnesses Rafiuddin and Kawser would not have supported the prosecution case. They would not have supported the prosecution case, when it can be said the prosecution could not produce the FIR and Charge Sheet named witnesses.

(61) In the case in hand as per FIR, eye witnesses Rafiuddin and Kowser were not examined in court during trial of the case. Moreover, adjacent house owner of the place of occurrence Asia Khatoon, Asraf Ali, Joynal

Abedin and Alfaz Uddin were not examined in court.

(62) PW-6 Abdul Hannan stated that he has a studio at Holidhani Bazar. But he did not see who killed the deceased Dudu. PW-7 and PW-8 stated in their deposition that the accused were wearing musk at the time of commission of offence. The defence plea taken by accused the deceased was killed by his rivalry party. So, the rivalry party came to the place of occurrence wearing musk, which supports the defence case.

(63) In the case of Abul Bahar

. . . Appellant (Supra)

-Vs-

State

. . . respondent

Reported in (1985) BLD(HCD)
84. 1959 PLD(Dhaka) at page-
931 of the evidence Act.

Wherein your lordships
observed as under:

Section 114(g) of the Evidence

Act.

“Non-production of the witnesses named in the FIR and Charge sheet has weakened the prosecution should be drawn against the prosecution.”

(64) In the case of Farid Miah

. . . Appellant (Supra)

-Vs-
State

. . . . respondent
reported in 13BLC at page-
903, wherein your lordships
observed as under:

“When the material witnesses are not called in a case and no sufficient explanation has been given for their absence, the court may be drawn a presumption that they would not support the prosecution case. It is true that prosecution has discretion not to examine certain

witnesses for avoiding proliferation of evidence. But the eye witnesses who have been the occurrence should not be withdrawn. In a criminal case, failure to give evidence of such eye witnesses the presumption is that if produced, it would be unfavourable to the person who withholds it.

(65) In the case of Babor Ali Mollah

. . . Appellant (Supra)

-Vs-

State. . . . respondent reported in 44DLR(AD) (1992) at page-10, wherein your lordships observed as under:

Evidence Act (1 of 1872)

Section 154 and 155:

“Evidence by eyewitness-Vital omissions in FIR and statement to the Investigation

Officer make their substantive evidence unreliable.

Prosecution did not make attempt to examine relevant witnesses to corroborate PW-1's claim that she mentioned the name of accused Babor while lodging the FIR but the report was not read over to her, nor is there any cross-examination of the Investigation Officer who stated to have read over the FIR to her who admitted the same to have been correctly recorded. Similarly, another eye-witness, PW-5, did not state to the Investigation Officer about the recognition of some of the accused and

injuries done to the deceased that were deposed in Court. Such vital omissions of material facts amount to contradiction. The High Court Division did not at all consider vital omissions relating to assault on the deceased. In view of such vital omissions it is difficult to rely upon the so-called eye-witnesses.”

- (66) In the case in hand PW-1 Saleha Khatoon stated in the FIR that accused Mujibor Sarder gave an order to other accused “ধর এই শালাকে খুন কর” thereafter FIR named accused killed her husband. She did not mention the name of accused Mujibor Sarder as order giving accused “হুমদাতা” in court. Moreover, investigating officer did not include the name of Mujibor Sarder as accused in the

FIR. On naraji a judicial inquiry was held but his name was not included as an accused of this case. Moreover, PW-12 Abdur Razzaque was examined under section 161 of the Code. When he stated to the investigating officer that he did not see the incident rather he heard about the incident of murder of Dudu, but he did not disclose the name from whom he heard about the incident of murder. So, the fact of the cited case is holding good with the fact of the present case.

(67) In the case of State of Punjab

. . . Appellant (Supra)

-Vs-
Surja Ram

. . . respondent,

reported in
Manu/SC/0482/1995, 1995
CrLJ 4161,(Supra),wherein
your lordship observed as
under:
“When the evidence of any
witness is rejected in part then
other part of the evidence is

relied only if the same
intrinsically trustworthy”.

(68) In the cited case the court can believe the evidence partly and disbelieve partly of the evidence of same witness.

(69) In the case in hand PW-15 Nurul Islam claimed to be eye-witness of this case. He stated in his deposition that having heard the incident of murder Dudu came to the place of occurrence when he saw to go away of the accused-persons. Thereafter he stated that accused Mozammel dealt a blow on the chest of the deceased and other accused assaulted him mercilessly by using iron rod and lathi. Thereafter the accused went away from the place of occurrence having seen witnesses came to the place of occurrence second part of his evidence is contradictory with the first part of his evidence other witnesses PW-9, PW-10, PW-11 and PW-12 were most

interested witnesses because all the witnesses are closed to PW-2 who is the orchestrator of the case. Moreover, the evidence of remaining witnesses PW-6-8 did not support the prosecution case. So, the evidence of PW-15 was not intrinsically trustworthy, because the eye witness of the case were not at all eye witnesses of the case. After gaining over the FIR named and charge sheet named witnesses the prosecution has set-up the witnesses PW-10-12 as eye witnesses, because their evidence as eye witness was tainted and tutored evidence.

(70) PW-16 is the post mortem conducting doctor over the dead body of the deceased Dudu. He found penetrating wound on the body of deceased and multiple bruise and multiple injuries on the body of the deceased. PW-17 SI Md. Nazrul Islam stated that he submitted charge sheet having found prima-

facie case against 8 accused-persons, thereafter accused Nazim Uddin has been included as accused through judicial inquiry. He stated in his cross-examination that Nabis Chowdhury and his wife was the eye witness of the incident of murder of Dudu. Moreover, their house is adjacent to the place of occurrence, Nabis Chowdhury was examined in court, he did not support the prosecution story and his wife Asia Khatoon was not examined in court without offering any plausible explanation for non-examining of the said witness Asia Khatoon. He further stated in his cross-examination that he examined the witness of the case and recorded their statement under section 161 of the code of Criminal Procedure 15 days after the date of incident but the investigating officer has not given any specific reason in this regard, which cast a

doubt on the entire prosecution case. In this context we rely upon a case,

Shahabuddin

. . . Appellant

-Vs-

State

. . . respondent,
reported in 61 DLR(2009) at
page-55,

wherein your lordships
observed as under:

Code of Criminal Procedure (V

of 1898)

Section 161

“Investigating officer did not assign any reason for the long delay in examining the PWs. Delay in examining the witnesses under section 161 of the Code is fatal to prosecution case and statements of witnesses are required to be left out of consideration.”

(71) He denied a suggestion that the deceased Dudu was killed by the anti-group of terrorist outfit organization of Purba Bangla Communist Party. The deceased Dudu was very much close to PW-2 Abdur Rashid and the deceased Dudu was brother-in-law by village courtesy. PW-1 denied a suggestion put forward to her, that PW-2 Abdur Rashid was the member of Purba Bangla Communist party and her husband was the member of the said party. PW-7 and PW-8 stated that the accused persons were wearing on mask. The defence has given specific suggestion that the deceased was murdered of another outfit organization named Purba Bangla Communist Party and it further appears from the evidence of PW-12 that the accused Rokon, Toyakkel, Abul and Enamul made blank fires to disperse people coming towards the place of occurrence, which also supports

the defence case that the deceased Dudu was killed by other way round not as alleged by the prosecution side.

(72) We have carefully scrutinized the impugned judge, wherein the learned court below observed that PW-15 is the impartial eye witness of the incident of murder. PW-15 stated in his deposition, that he saw the accused going away from the place of occurrence, so, he did not see the accused to kill the deceased Dudu. The second portion of his deposition he disclosed the name of the accused which is contradictory with first part of this case but the learned court below failed to consider the evidence in it's true perspective. Moreover, the learned court below came to a findings that the evidence of prosecution is consistent, trustworthy and corroborative in nature. The deposition of PWs on a critical analysis that PW-10 and

PW-11 were not the eye witnesses because PW-1 did not disclose their name as eye witnesses of the case. PW-1 stated that the eye witness whose name has been mentioned as eye witness in the First Information Report, they have been gained over at the time of giving deposition. Thereafter, PW-1 deposed in court disclosing the name of PW-10 and PW-11 are the eye witnesses of the case, which reveal from analysis of the evidences of prosecution witnesses intrinsically.

(73) The defence has further raised that the accused persons were not examined properly under section 342 of the Code of Criminal Procedure because the court did not draw attention to the incriminating materials appearing against the accused during trial of the case. As, all the accused persons have been examined jointly and thereby the

accused persons have been prejudiced for not drawing the attention of the incriminating evidence one by one. In this context, we have carefully perused the High Court Form (M-47) in which the court examined of the accused under section 342 of the Code. Wherein the court clearly observed by drawing attention of the accused in a separate form not examined all accused jointly by a single order. So, the learned court below rightly examined the accused properly observing all legal formalities as provided under section 342 of the Code.

(74) In the case of Khorshed (Md) and another
 . . . appellants (Supra)
 -Vs-
 State

. respondent
 reported in 73DLR (AD) 83
 wherein your lordships
 observed as under:
 Code of Criminal Procedure
Section 342

“Non spelling out of details of
 the confession to the appellant

at time of his examination under section 342 of the Code. He has not been prejudice in any way.

Admittedly the confessional statement was brought to the notice of the condemned-prisoner during his examination under section 342 of the Code and that during examination inculpatory nature of the confession was also pointed out to him. But, it was not spelt out in detail.”

(75) The learned court below has failed to take into notice of discrepancies of the evidence of prosecution witnesses rather the judgment is based on evidence of unreliable and the evidence of partisan witnesses. So, the impugned judgment is not justified in

the prosecution witnesses as close relatives with each other but in the light of our observation the eye witnesses as termed by the prosecution which are not at all eye witnesses in the light of our observation made above. So, in the cited decision for the state is distinguishable from the facts and circumstance of this case; and the decision cited by the learned advocate for the convict-appellants, which are consistent with the facts and circumstances of this case.

(79) In such a situation we are of the view the prosecution has completely failed to prove the charge levelled against the appellants beyond reasonable doubt and thereby call for inference of the impugned judgment by this court as such the impugned judgment deserved to be set-aside.

(80) Thus, the appeal having merit and succeeds.

In the result,

(81) Criminal Appeal No. 2511 of 2001 is allowed.

(a) The impugned judgment and order of conviction and sentence dated 27.06.2001 passed by the learned Additional Sessions Judge, 2nd Court, Jhenidah in Sessions Case No.47 of 2000, arising out of Jhenidah Police Station Case No.26 dated 31.08.1997, corresponding to G.R. No.237 of 1997 is hereby set-aside.

(b) Therefore, the appellants are acquitted of the charge leveled against them.

(c) The convict-appellants are found not guilty of the offence under section 302 and 34 of the Penal Code. Sureties are discharged from their respective bail bond.

(d) The Office is directed to send down the record along with a copy of the judgment at once.

(Justice K.M. Emrul Kayesh)

Syed Md. Ziaul Karim, J:

I agree.